STUDENT ENROLLMENT, ASSUMPTION OF RISK, WAIVER AND RELEASE OF LIABILITY

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SECTION 1 — STUDENT INFORMATION

Full legal name _____ Date of birth _____

Street address _____ City, State, ZIP _____

Phone _____ Email _____

Emergency contact name _____ Emergency contact phone _____

Previous aviation experience

Previous paramotor or paragliding experience

Do you have any medical conditions, injuries, physical limitations, or other circumstances that could affect your ability to safely participate in paramotor training?

☐ Yes ☐ No

If yes, please explain anything relevant to your safe participation

THE AGREEMENT

PLEASE READ THIS DOCUMENT CAREFULLY. THIS IS A LEGAL AGREEMENT THAT AFFECTS YOUR RIGHTS, INCLUDING YOUR RIGHT TO BRING CERTAIN LAWSUITS.

THIS AGREEMENT EXPRESSLY INCLUDES A RELEASE OF CLAIMS BASED ON THE ORDINARY NEGLIGENCE OF THE RELEASED PARTIES, TO THE EXTENT PERMITTED BY NORTH CAROLINA

LAW.

Section 2 — Description of Training and Activities

I acknowledge that I am voluntarily enrolling in training and instructional activities provided by Mojo's Flight School, LLC ("Mojo's" or the "School").

The activities may include, but are not limited to:

- Classroom and ground school instruction.
- Introduction to powered paragliding and paramotor equipment.
- Equipment familiarization, inspection, setup, and breakdown.
- Engine starting, shutdown, and operation.
- Propeller, engine, fuel, and mechanical safety instruction.
- Wing inflation, ground handling, and kiting.
- Launch preparation and takeoff procedures.
- Foot-launch training.
- Flight instruction and supervised solo flight training.
- Flight planning, weather assessment, and risk management.
- Landing procedures and recovery techniques.
- Equipment handling and maintenance demonstrations.
- Training conducted at airports, private properties, designated flying areas, and other approved training locations.

Collectively, these activities are referred to as the "Activities."

I understand that Mojo's provides paramotor instruction and training. Mojo's does not provide tandem flights, passenger flights, or passenger-carrying services as part of its training program.

I understand that the School may modify, postpone, suspend, or discontinue any training activity based on weather, safety, equipment condition, instructor judgment, student ability, or other operational circumstances.

Section 3 — Acknowledgment and Assumption of Risks

I understand that powered paragliding, paramotoring, and related ground and flight training are inherently dangerous activities that involve substantial and unavoidable risks.

I acknowledge that participation may result in serious bodily injury, permanent disability, paralysis, property damage, or death.

I voluntarily accept and assume all inherent risks associated with participation, whether known or unknown, foreseeable or unforeseeable, including but not limited to:

Flight and operational risks:

- Takeoff, launch, flight, approach, and landing accidents.
- Loss of control, wing collapse, stalls, spins, spirals, or abnormal flight conditions.

- Sudden changes in direction, altitude, airspeed, or descent rate.
- Midair collisions or collisions with aircraft, terrain, structures, trees, vehicles, power lines, fences, or other objects.
- Improper launch or landing techniques; student error, judgment errors, or failure to follow procedures.
- Risks associated with solo flight and independent pilot decision-making.

Equipment and mechanical risks:

- Engine failure, mechanical failure, or equipment malfunction.
- Propeller injuries, rotating components, fuel leaks, fire, or burns.
- Wing, harness, reserve parachute, motor, frame, or component failure.
- Equipment defects, wear, deterioration, or improper adjustment.
- Improper equipment inspection, setup, handling, or maintenance.
- Equipment supplied by the School or owned by the student or another party.

Environmental and location risks:

- Wind, turbulence, thermals, changing weather, storms, lightning, and reduced visibility.
- Uneven ground, obstacles, rough terrain, and unsafe landing surfaces.
- Wildlife, insects, vegetation, and environmental hazards.
- Airports, runways, taxiways, hangars, vehicles, aircraft, and other airport operations.
- Private property, public property, and other training locations.
- Remote locations where emergency medical assistance may be delayed.

Training and human risks:

- Physical exertion, fatigue, stress, anxiety, or loss of concentration.
- Mistakes by students, instructors, employees, contractors, property owners, or other participants.
- Miscommunication, incorrect judgment, or failure to recognize a developing hazard.
- Inadequate personal preparation or failure to follow safety instructions.
- Risks arising from my own physical condition, experience, decisions, or actions.

I understand that receiving instruction does not eliminate these risks or guarantee that I will be able to operate a paramotor safely. I voluntarily choose to participate despite these risks.

Section 4 — Release and Waiver of Liability

THIS SECTION IS A MATERIAL PART OF THIS AGREEMENT. PLEASE READ IT CAREFULLY.

In consideration for being permitted to enroll in, receive instruction from, access training facilities for, and participate in the Activities offered by Mojo's Flight School, LLC, I, on behalf of myself and, to the extent legally permitted, my heirs, estate, personal representatives, and assigns, hereby release and discharge the Released Parties identified below from claims described in this section.

The Released Parties include:

- Mojo's Flight School, LLC.
- Its owners, members, managers, officers, and directors.
- Its instructors, employees, independent contractors, agents, and authorized representatives.
- Its volunteers and assistants.
- Property owners, airport operators, landlords, and facility operators who make locations available for the School's Activities.
- Their respective employees, representatives, agents, successors, and assigns.

I understand that this release is intended to apply to claims for bodily injury, personal injury, death, and property damage arising out of or connected with my participation in the Activities, my presence at training locations, or my use of equipment.

I EXPRESSLY AGREE TO RELEASE THE RELEASED PARTIES FROM CLAIMS ARISING FROM THEIR ORDINARY NEGLIGENCE, INCLUDING NEGLIGENT ACTS OR OMISSIONS IN THE INSTRUCTION, SUPERVISION, ORGANIZATION, OPERATION, OR CONDUCT OF THE ACTIVITIES, TO THE EXTENT SUCH RELEASE IS PERMITTED BY APPLICABLE LAW.

This includes, where legally permissible, claims involving ordinary negligence in:

- Training and instructional activities.
- Supervision and safety procedures.
- Equipment inspection, selection, or maintenance.
- Training-site operations and conditions.
- Warnings and communications concerning ordinary risks.
- Acts or omissions of instructors, employees, agents, and other Released Parties.

This release does not purport to waive claims that cannot legally be waived under applicable law, including claims based on gross negligence, willful or wanton conduct, intentional misconduct, or violations of nonwaivable statutory duties.

I understand that this release may prevent me from recovering damages from a Released Party for certain injuries or losses even if ordinary negligence contributed to the occurrence.

Section 5 — Equipment Use and Outside Equipment

I understand that training may involve equipment owned or supplied by Mojo's Flight School or equipment that I own or have obtained from another source.

I acknowledge the following:

- Mojo's reserves the right to inspect equipment before allowing it to be used during training.
- Mojo's may refuse to use or permit the use of equipment that it considers damaged, defective, unsuitable, improperly maintained, or unsafe.
- Mojo's may require a student to use different equipment or school-provided equipment when appropriate for safety or training purposes.
- Mojo's does not guarantee the condition, safety, reliability, or suitability of equipment purchased or obtained from third parties.

- Mojo's is not responsible for maintaining, repairing, or servicing privately owned equipment unless it separately agrees to do so.
- Students must disclose known defects, modifications, damage, or maintenance concerns involving their equipment.
- Students must follow all equipment handling, inspection, operating, and safety instructions provided by their instructors.

I understand that the School's inspection or acceptance of equipment does not constitute a guarantee that the equipment is free of defects or safe under every operating condition.

I agree to be responsible for loss of or damage to school-owned equipment to the extent caused by my negligent, reckless, intentional, unauthorized, or improper use, subject to applicable law.

Nothing in this section creates an equipment rental arrangement, equipment lease, or right to take school-owned equipment away from the training location.

Section 6 — Student Responsibilities and School Authority

I agree that I will:

- Follow all reasonable instructions and safety procedures provided by instructors.
- Conduct myself in a safe and responsible manner.
- Disclose relevant medical conditions, injuries, limitations, or circumstances affecting safe participation.
- Refrain from participating while impaired by alcohol, illegal drugs, or medications that may affect safe performance.
- Never participate while under the influence of alcohol or recreational drugs.
- Use equipment only as instructed and authorized.
- Respect airport rules, property restrictions, and applicable aviation regulations.
- Immediately report equipment problems, injuries, unsafe conditions, or incidents to an instructor.
- Refrain from attempting maneuvers or activities beyond my training, experience, or authorization.

I understand that instructors have the authority to refuse, suspend, or terminate training or flight activities whenever they believe conditions, equipment, student conduct, student ability, or other circumstances create an unacceptable safety risk.

I understand that weather conditions may change rapidly and that training or flight activities may be canceled or delayed without guaranteeing that a replacement session will occur at a particular time.

I acknowledge that instruction is not a guarantee of proficiency, certification, employment, independent flying ability, or future safety.

Section 7 — Medical Fitness and Emergency Authorization

I represent that I am physically and mentally capable of participating in the Activities, or that I have disclosed relevant limitations to the School.

I agree that I will not participate when I know or reasonably should know that my physical or mental condition makes participation unsafe.

In the event of an accident, injury, or medical emergency, I authorize Mojo's Flight School, its instructors, employees, and representatives to contact emergency services and provide information reasonably necessary to obtain emergency assistance.

I authorize emergency medical personnel to evaluate and provide emergency treatment as they determine appropriate.

I understand that Mojo's Flight School is not a medical provider and does not guarantee the availability, timing, or outcome of emergency medical services.

I understand that I am responsible for medical expenses, ambulance charges, hospital expenses, and other costs associated with treatment, except to the extent otherwise required by law.

Section 8 — Aviation Regulations and Independent Operation

I understand that paramotor operations may be subject to applicable Federal Aviation Administration regulations, including 14 CFR Part 103 when the particular vehicle and operation qualify under that regulation.

I agree to comply with all applicable federal, state, and local laws, aviation regulations, airport rules, property restrictions, and operational requirements.

I understand that signing this agreement does not authorize me to operate an aircraft or ultralight vehicle in violation of applicable law.

I further understand that the School does not guarantee that every piece of equipment, vehicle, or operation automatically qualifies under Part 103.

I am responsible for understanding and following the rules applicable to any operation I conduct, including operations outside direct instruction or supervision.

Section 9 — Indemnification

To the extent permitted by applicable law, I agree to indemnify and hold harmless the Released Parties from third-party claims, damages, liabilities, and reasonable legal expenses to the extent arising from:

- My negligent or reckless conduct.
- My intentional misconduct.
- My violation of applicable laws or regulations.
- My unauthorized use of equipment or property.
- My material breach of this agreement.

This provision is not intended to require me to indemnify a Released Party for that party's own negligence, gross negligence, willful or wanton conduct, or intentional misconduct.

Section 10 — Personal Property

I understand that I am responsible for securing and protecting my personal belongings, vehicles, equipment, and other property brought to training locations.

I acknowledge that loss, theft, or damage to personal property may occur during training or while present at an airport, private property, or other training location.

To the extent permitted by law, I assume the risk of loss or damage to my personal property associated with participation in the Activities.

Section 11 — General Legal Provisions

Entire Agreement: This document represents the agreement between me and Mojo's Flight School concerning assumption of risk, liability release, and participation in the Activities. It supersedes prior oral discussions concerning these same subjects.

Severability: If any provision is found invalid or unenforceable, the remaining provisions shall remain effective to the extent permitted by law.

Governing Law: This agreement shall be governed by the laws of the State of North Carolina, without regard to conflict-of-law principles, subject to any mandatory applicable law.

No Guarantee of Protection: I understand that this agreement does not eliminate every possible legal claim or excuse conduct for which liability cannot legally be waived.

Opportunity to Ask Questions: I acknowledge that I have had the opportunity to read this agreement, ask questions, and seek independent legal advice before signing.

Section 12 — Electronic Records and Signature

I agree to conduct this transaction electronically and acknowledge that:

- I have been provided access to this complete agreement before signing.
- I have had the opportunity to read and review the entire agreement.
- I understand that checking the acknowledgment boxes and applying my electronic signature indicates my intent to be legally bound.
- My electronic signature is intended to have the same effect as my handwritten signature to the extent permitted by applicable law.
- I may obtain and retain a copy of the signed agreement.
- I understand that the School may retain an electronic copy and associated signing records for its business and legal records.

FINAL ACKNOWLEDGMENTS — INITIAL OR CHECK EACH

☐ I have read and understand this entire agreement.

☐ I understand that paramotor training and flying involve risks of serious injury, permanent disability, and death.

☐ I voluntarily assume the inherent risks associated with the Activities.

- [ ] I specifically understand that this agreement releases certain claims arising from the ordinary negligence of the Released Parties to the extent permitted by law.
- [ ] I understand that Mojo's Flight School does not provide tandem flights or passenger-carrying services.
- [ ] I understand that Mojo's Flight School does not rent equipment.
- [ ] I agree to follow instructor directions, safety procedures, and applicable aviation regulations.
- [ ] I confirm that the information I have provided is accurate and complete to the best of my knowledge.
- [ ] I agree to execute this agreement electronically.

STUDENT SIGNATURE

By signing below, I adopt this as my signature and intend to sign this agreement and be legally bound by it.

Student signature _____ **Date** _____

Printed full legal name _____